

23STCV05533 23STCV05533

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Case Number: 23STCV05533 Hearing Date: August 17, 2026 Dept: 514

Doe v. Young

23STCV05533

Plaintiff's Motion to Compel Defendant Young to
Provide Further Responses to Form Interrogatories (Set Two)

Tentative Ruling

The Court's tentative ruling is that the
motion to compel is denied as untimely.

The Court will call this matter to discuss
the status of the other pending motions to compel.

Background

This
action arises out of an employment relationship.

On

March 13, 2023, Jane Doe ("Plaintiff") filed a complaint against Kevin Young
a/k/a Kevin Young Commander of the British Empire ("Young") and Properties GB7
LLC ("GB7") (collectively "Defendants").

On

April 5, 2023, Plaintiff filed the operative First Amended Complaint (the
"FAC"). In the FAC, Plaintiff asserts

causes of action for: (1) sexual battery; (2) sexual assault; (3) gender violence; (4) harassment in violation of the Fair Employment and Housing Act (the "FEHA"); (5) constructive discharge in violation of public policy; and (6) intentional infliction of emotional distress.

On May 8, 2023, Defendants filed an Answer to Plaintiff's FAC. On the same day, Defendants also filed a Cross-Complaint against Plaintiff, Arch Hoffman ("Hoffman"), and Roes 1 through 20, asserting causes of action for: (1) conspiracy to defraud; (2) breach of fiduciary duty; (3) breach of contract; (4) conversion; (5) money had and received; and (6) money paid.

On June 1, 2023, Plaintiff filed an Answer to the Cross-Complaint.

On September 18, 2023, the Court granted Hoffman's motion to compel arbitration of the claims in the Cross-Complaint. The Court stayed litigation of the claims against Hoffman in the Cross-Complaint and also stayed arbitration pending resolution of the claims in the Complaint.

On April 13, 2026, the Court granted Defendants leave to file a First Amended Answer. The Court also continued the trial date, then set for May 4, 2026, to July 13, 2026.

On April 15, 2026, Defendant filed the First Amended Answer.

At the Final Status Conference on July 2, 2026, the Court continued the trial date to October 12, 2026.

On July 21, 2026, Plaintiff filed this motion to compel Defendant Young to provide further responses to Form Interrogatories (Set Two), along with six other motions. The motions were set for hearing on August 17, 18, and 19, 2026.

Defendants applied ex parte to vacate all of the hearings, arguing that they were untimely.

On July 24, 2026, the Court denied the application but also stayed the briefing on all motions under this motion to compel further responses to form interrogatories.

Defendants filed an opposition on August 4,
and Plaintiff filed a reply on August 10.

Trial is set for October 12, 2026.

Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees,

incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Code of Civil Procedure section 2024.020
establishes deadlines for discovery and provides:

“(a) Except
as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.

(b) Except
as provided in Section 2024.050 [relating to a motion to reopen discovery], a continuance or postponement of the trial date does not operate to reopen discovery proceedings.”

Discussion

Plaintiff moves
to compel a further responses to Form Interrogatory 17.1 as it relates to Request for Admission No. 13.

A motion to
compel must be heard at least 15 days prior to the date initially set for trial. (Code Civ. Proc., § 2024.020, subd. (a).) Unless the Court orders otherwise, a continuance of the trial date does not reopen or extend discovery deadlines. (Id., subd. (b).)

Here, the trial
date was initially set and then continued on multiple occasions, ultimately to May 4, 2026. The trial continuance orders expressly reset the discovery deadlines based on the new trial date. Accordingly, at least as of early

April 2026, the last day for discovery motions to be heard was Friday, April 17, 2026 (or perhaps Monday, April 20, fourteen days before trial).

On April 13, 2026, the Court continued the trial date to July 13, 2026. The Court stated:

“No discovery deadlines are extended by this order, except that discovery is reopened only as to the limited issue of the new affirmative defense [based on the statute of limitations] set forth in the Amended Answer. As to that discovery only, the deadlines are reset based on the new trial date.”

(Minute Order dated April 13, 2026.) Accordingly, at least as of the end of June 2026, the last day for discovery motions to be heard had passed. For hearings on discovery unrelated to the new statute of limitations defense, the last day had been in April 2026. For hearings on discovery related to the new statute of limitations defense, the last day had been Friday, June 26, 2026 (or perhaps Monday, June 29, fourteen days before trial).

At the Final Status Conference on July 2, 2026, the Court, on its own motion, continued the Final Status Conference to October 2, 2026, and continued the trial date to October 12, 2026. The Court did not extend or reset any discovery deadlines.

Under Code of Civil Procedure section 204.020, subdivision (b), the Court's Order of July 2 did not extend or reset any discovery deadlines. The motion to compel deadline passed in June 2026. No court order has extended or reset the motion to compel deadline. Accordingly, this motion to compel is denied on the ground that it is untimely.

Plaintiff argues that the Court's Order of April 13, which reset discovery deadlines “based on the new trial date” should be read to mean that any continuance that occurred in the future (such as came to pass on July 2) would automatically reset the discovery deadlines. There is no support

for this interpretation of the Court's Order.

This is contrary to both the letter and spirit of Code of Civil

Procedure section 2024.020, subdivision (b), as well as to the common practice

and understanding of judges and litigants alike. A trial continuance that is silent on extending

discovery deadlines is, under section 2024.020, the equivalent of an order that

expressly states that no discovery deadlines are extended. The presumption is that a continuance does

not extend discovery deadlines; any exception must be expressly made in the

order.

The Court also

notes that the continuance ordered on July 2 was not requested by any

party. It was ordered on the Court's own

motion, and the primary reason for the continuance was the Court's schedule,

not any concern relating to the inability of any party to complete necessary discovery.

The Court also makes

two additional observations.

First, although

not briefed by the parties, it appears to the Court that Plaintiff did not

comply with the statutory requirement to meet and confer before filing a motion

to compel. A party moving to compel

further responses to interrogatories must file, with the motion, a declaration

establishing that the moving party has satisfied the statutory requirement to

meet and confer as set forth in Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd.

(b)(1).)

Code of Civil

Procedure section 2016.040, as amended by the Legislature effective January 1,

2026, provides:

"A meet and

confer declaration in support of a motion shall state facts showing a

reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion."

(Code Civ.

Proc., § 2016.040, subd. (a).)

Here, however,

it appears that the only meet and confer communication was in writing.

Second, the

Court notes that the parties discuss in their briefing the issue of whether the requirements for a motion to reopen discovery under Code of Civil Procedure section 2024.050 are satisfied.

Plaintiff does not request such relief in her moving papers, however, and the Court will not grant relief that is not requested in the notice of motion and motion.

The Court need

not reach, and does not reach, the other arguments in Defendants' opposition.

The motion is

denied on the ground that it is untimely.

As the motion is

denied, so too is Plaintiff's request for sanctions.

Conclusion

The Court DENIES

the motion of Plaintiff Jane Doe to compel Defendant Kevin Young to provide further responses to Form Interrogatories (Set Two).

Moving Party is ORDERED to give notice.